

BYLAWS OF NETWORK THEORY APPLIED RESEARCH INSTITUTE, INC.

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Draft for member consideration under Article IX; not yet adopted. Full rewrite: membership is rebuilt on the Janus Facing Architecture standard, and every article is restated at the instrument's proper altitude — governance in the bylaws, operations in board policy, architecture in the architecture document.

ARTICLE I: CORPORATE IDENTITY AND PURPOSE

Section 1.1: Corporate Status

The Network Theory Applied Research Institute, Inc. ("Corporation") is a nonprofit corporation organized exclusively for charitable, educational, and scientific purposes under Section 501(c)(3) of the Internal Revenue Code and KRS Chapter 273.

Section 1.2: Corporate Purpose

The Corporation's purpose is to improve the internet by developing systems, protocols, and programs that advance network technology for the global public benefit, including:

- Research and development of open-source network protocols
- Educational programs on network theory and internet infrastructure
- Scientific advancement in distributed systems and network topology
- Charitable activities that promote digital equity and internet accessibility

Section 1.3: Prohibited Activities

The Corporation shall not:

- Engage in political campaigning or substantial lobbying activities as prohibited under Section 501(c)(3)
- Operate for private benefit or private inurement
- Discriminate based on protected characteristics under applicable law
- Engage in activities inconsistent with tax-exempt status under Section 501(c)(3)

Section 1.4: Fundamental Commitments

The following core commitments require supermajority membership approval (two-thirds of all voting members) plus unanimous board approval to modify:

- Open-source commitment for all protocols and systems developed by the Corporation
- Privacy-first principles and user data sovereignty
- Prohibition on surveillance capitalism and data monetization practices

Section 1.5: Architectural Conformance

The Corporation develops software under Janus Facing Architecture and is the nonprofit, copyleft stewardship organization named at that architecture's governance layer. The Corporation's own

governance is one instance of the architecture's governance layer, and these bylaws are the instrument in which the instance's political choices bind. Where these bylaws depart from the architecture's demands, the departure is a named interim under Article XII, held to a committed exit. The architecture document confers no authority over any vote of the membership; Article XII governs the relationship between the two instruments.

Section 1.6: Governance Principles

Two principles of the architecture govern the reading of every provision of these bylaws:

Shared Responsibility. The community that coordinates is the same community that checks the coordination. The two functions are exchanged continuously and are never split into rulers and ruled.

Institutional Discipline. Each part of the Corporation's governance is disciplined by the cost of leaving it: where leaving is cheap, competition disciplines; where leaving is dear, members vote; where leaving is impossible, decisions stay open to challenge. Section 12.4 assigns this discipline to the Corporation's own institutions, binding the architecture's instrument-designated invariant P-cost-of-leaving.

ARTICLE II: MEMBERSHIP

Section 2.1: The Membership Standard

Membership in the Corporation follows the standard set at the architecture's governance layer:

membership carrying the governance franchise is obtained by operating a federated instance of JFA software. It is qualified by operation, never by purchase; no fee attaches to it, and no payment of any kind enlarges any person's standing. The Corporation has two classes of members:

Community Membership — free of charge. Open to any eligible natural person under §2.2. Carries voice in every open channel of the Corporation, access to the open-source commons and public documentation, and standing to submit observations under the Maximum Observational Diversity procedure (Article XI §11.4, Appendix A). Community membership carries no governance franchise.

Operator Membership — free of charge. Open to any natural person who operates a federated instance under §2.5. Carries the governance franchise: electing Directors, voting on matters before the membership, and casting binding votes in channel proceedings under Article III. Operator status qualifies a person's single vote and never multiplies it.

Paid subscriptions under §5.8 provide tooling and services only. A subscription is not a class of membership, confers no governance right, and qualifies nothing.

Acceptance of any class of membership constitutes acknowledgment of the Contributor Covenant under Article XI.

Section 2.2: Eligibility and Application

Membership is open to any natural person who agrees to abide by these bylaws and the Contributor Covenant, is not subject to a then-current termination action under §2.8, and, for Operator membership, qualifies under §2.5.

The Board shall establish application and onboarding procedures by policy resolution. Verification at onboarding shall be zero-cost to the applicant, shall not require the purchase of any device or service, and shall not rely on telephone-number verification. The Board may decline an application only for cause and shall document the reason in the corporate record.

Section 2.3: The Voting Body and One Person, One Vote

The voting body for any matter before the membership consists of every operator member in good standing and every Director then in office. Each such person holds exactly one vote, regardless of multiple capacities held: a person who is at once an operator of any number of platforms and a Director votes once, not twice. No member may delegate or assign their vote to another.

The Corporation conducts membership voting asynchronously: each meeting establishes a voting window during which members cast their own votes.

Section 2.4: Membership Meetings

Annual Meetings. The Corporation shall hold an annual membership meeting during the fourth quarter of each fiscal year, at such time and venue as determined by the Board.

Special Meetings. Special meetings of the voting membership may be called by the Board, the President, or twenty percent (20%) of voting members in good standing.

Notice. Written notice of membership meetings shall be given to all members not less than ten (10) nor more than thirty-five (35) days before the meeting date, stating the venue, date, hour, and purpose of the meeting.

Quorum. Voting members holding one-tenth (1/10) of the votes entitled to be cast, casting their votes during the voting window, constitute a quorum. If quorum is not reached, the meeting may be adjourned and reconvened with not less than ten (10) days' written notice; at the reconvened meeting, voting members casting votes during the reconvened window constitute a quorum for the business stated in the original notice.

Section 2.5: Operator Membership

Qualification. Operator membership is open to any natural person who actively operates a federated instance of the network — a node, frontend, record service, or economy running on protocols stewarded by the Corporation — with active operation further defined by board policy. An instance is federated only while its platform maintains at least two independent witnesses; a platform with fewer must label itself unfederated, and its operator does not hold Operator membership while so labeled. Witnessing itself is a function of the substrate layer and is not otherwise a concern of these bylaws.

Recognition — bootstrap and maturity. Until the record layer of the architecture is operating — the public chain distributed across substrate, with platforms maintaining their two independent witnesses — operator members are recognized by Board action with notice to the membership, beginning from the genesis operator set of §12.3(c). Once the record layer is operating, recognition is read against the public chain: an operator is recognized by the recorded history of their operation, without any body's further permission. Operators under common control are not independent of one another. The transition of recognition modes is governed by §12.3(b).

Conduct standard. An operator member holds the franchise provided they are not found responsible, under the process of this Section, for:

- **Gaming** — manufacturing or manipulating exchange, reputation, or corroboration signals, including wash trading, collusive corroboration, or operating platforms under common control presented as independent
- **Tampering** — altering, rewriting, or equivocating the record; obstructing witnessing; or presenting divergent histories to different audiences

- **Harmful environments** — adjudicated harm to the prosumers of the operator's platform arising from the operator's conduct of that platform, including obstruction of claim filing, abusive delay of open claims, or patterned dismissal of claims

Evidence discipline. A finding under this Section rests on conduct read as structure from the public chain and the six-holder record — each transactor's record, the operator's, both witnesses', and the chain itself — and on adjudicated harm claims from genuine counterparties. A finding shall never be derived from an average of ratings; dissatisfaction with a verdict is not, by itself, misconduct; an automated or analytic flag is an input to contestation, never a finding. A single adjudicated harm may suffice to disqualify; no volume of good conduct absolves it. Until the record layer is operating, the Board shall weigh the self-attested character of unwitnessed evidence and shall say so in any disposition.

Process. A question of operator conduct may be raised by the Vice President under the audit authority of §4.3 or by any member of any class through open objection; the two channels are co-equal and neither gates the other. The operator shall receive written notice and the opportunity to answer before any disposition. Disposition of the franchise question requires both (a) majority vote of the Board and (b) two-thirds (2/3) vote of the voting membership present at a properly noticed meeting where a quorum exists; the operator subject to the question shall not vote on it. Disqualification removes the operator franchise only: the person retains Community membership, and disqualification is not, by itself, termination under §2.8. The finding and its disposition are recorded in the register of §7.3 as annotations, never erasures. Readmission proceeds under §2.7.

Section 2.6: The Federations

The Federations are the standing circles of the Corporation's commons, aligned with the layers of Janus Facing Architecture as stewarded under §4.5, together with such additional federations as the Board may charter by policy resolution. The current Federation Channels are:

- #federation-substrate — the Substrate layer
- #federation-record — the Record layer
- #federation-covenant — the Covenant layer
- #federation-governance — the Governance layer
- #federation-economy-information — the Economy & Information (E&I) layer
- #federation-volunteers — volunteer coordination across the commons

Operator requirement. Membership in a Federation requires Operator membership in good standing under §2.5, and follows it automatically: recognition confers federation membership, suspension or disqualification ends it, and restoration restores it. A person holds exactly one vote in any matter before a Federation, regardless of the number of federations joined or platforms operated.

Voice never gated. Every Federation Channel remains open to participation by all members in good standing, of any class. The operator requirement gates binding federation votes only; it never gates voice. Members of any class retain standing to submit observations under the Maximum Observational Diversity procedure, and a passing countering observation reopens a decided federation matter for reconsideration in the manner provided by §3.3.

Non-derogation. The Federations are the Corporation's instance of the operator federation of the architecture's governance layer; per §12.1, the architecture document confers no authority. Nothing in this Section modifies the voting body of §2.3 or the non-derogation rule of §12.5.

Section 2.7: Appeals and Readmission

The governance venue for appeals under the architecture's dispute design is the office of the Vice President. A prosumer whose trust has been suspended or whose expulsion has been referred to governance, and an operator disqualified under §2.5, may appeal by submitting their case to the office of the Vice President. The submission shall contain no personally identifying information; Article XI §11.2 governs.

Upon receipt, the Vice President's office shall post the case to the appropriate Federation Channel for a rating period of one (1) week under the LBTAS rating procedure. Each member of the Vice President's circle (#desk-vice-president) may cast exactly one rating on the offense during the appeal period. No member of the membership is required to vote. If the mode of the ratings recorded is negative one (-1), the appellant is not readmitted. If no ratings are recorded during the period, the Vice President, as the office's elected delegate, shall decide the appeal. A denied appeal may be resubmitted after a cooldown period of one (1) week.

Readmission restores the trust gate, franchise, or federation membership that the underlying disposition removed, on any terms the disposing bodies set under §2.5. Every appeal, rating period, and disposition is recorded in the register of §7.3 as annotations, never erasures.

Section 2.8: Membership Termination

Voluntary. Members may resign by written notice to the Corporation.

For cause. Membership may be terminated for cause only by both (a) majority vote of the Board and (b) two-thirds (2/3) vote of the voting membership present at a properly noticed meeting where a quorum exists. Cause may include violation of fundamental commitments, violation of the Contributor Covenant, or conduct inconsistent with the Corporation's mission. The member subject to proposed termination shall receive written notice and opportunity to be heard before both bodies, and shall not vote on the question of their own termination. Upon termination, all membership rights cease.

Section 2.9: Prosumer Standing

The architecture's guarantees run to the prosumers of federated platforms whether or not they hold any class of Corporation membership. A prosumer's positions and history survive any frontend; their disputes may be filed by any holder of the exchange's record; and the appeal venue of §2.7 is open to them. Membership in the Corporation is never a precondition for any right the architecture provides, and nothing in these bylaws diminishes the sovereignty of any platform community over its own currency and covenant.

ARTICLE III: GOVERNANCE AND THE BOARD OF DIRECTORS

Section 3.1: Governance Model

The Corporation is governed by its members, acting collectively through a nested-circle structure inspired by Sociocracy 2.0, conducted within designated channels of the Corporation's Workspace. The "Workspace" is the Corporation's designated venue for continuous deliberation and governance, established and designated by board policy. The current Workspace is a proprietary hosted service; its status as a named interim, and the committed exit to sovereign coordination substrate, are set forth in Article XII. The voting body for any matter before the membership remains as defined in §2.3.

Section 3.2: The Board of Directors

The Corporation shall maintain a Board of Directors as required by KRS 273.211. The Board is composed of the standing representatives of the Desk Channels established in §3.3. Each Director shall be a natural person of legal age and serves as Director during their tenure as a standing representative. The Board exercises ultimate fiduciary, legal, and compliance authority for the Corporation, including policy development, strategic planning and oversight, financial management and legal compliance, personnel decisions and program management, adoption and amendment of board policies, and establishment of program requirements.

Section 3.3: Desk Channels and Standing Representatives

The following Desk Channels are the office circles of the Corporation:

- #desk-president — office of the President
- #desk-vice-president — office of the Vice President
- #desk-secretary — office of the Secretary
- #desk-treasurer — office of the Treasurer
- #desk-workspace-administrator — office of the Workspace Administrator

Each Desk Channel is open to participation by all members in good standing, of any class. Within its designated domain, each channel is responsible for all matters pertaining to its office, with the powers traditionally exercised by the corresponding individual officer after voting on measures.

Each Desk Channel shall elect a standing representative from its participants. The standing representative serves as the corresponding officer under Article IV and as a Director under §3.2; carries the layer stewardship assigned to the office under §4.5; acts in accordance with decisions reached by channel vote; executes documents, signatures, and external communications required of the office; and is subject to removal under §3.7.

When an external action requires an individual representative and no standing representative is presently in office, the channel may designate a member to represent the office temporarily for a specific matter. Extended vacancy is addressed by the Board under §3.7.

Members of any class may participate in channel deliberation. Binding channel votes are by majority of participating voting members in good standing — operator members and Directors — unless these bylaws or board policy require a different threshold. For matters distributed across multiple channels for Board-wide approval, the Secretariat shall deduplicate votes after the channel votes have run so that each member's vote is counted exactly once toward the Board outcome; this deduplication is a temporary measure for the current Workspace tooling, to be retired upon adoption of voting infrastructure that natively enforces one person, one vote.

A member of any class who did not participate in a channel vote may challenge its outcome by submitting an observation under the Maximum Observational Diversity procedure (Article XI §11.4, Appendix A). The affected channel shall deliberate and vote on the countering observation, and a passing vote reopens the original matter for reconsideration. No decision of the Corporation is permanently closed to this challenge.

Section 3.4: Workspace Administrator

The Workspace Administrator works between channels in the Workspace to keep governance flowing: coordinating cross-channel matters, ensuring proper channel operation, supporting the workflow infrastructure of §3.5, and performing duties assigned by the Board. The Workspace Administrator presides over the Corporation's continuous channel deliberation and over the annual membership

meeting. As steward of the substrate layer under §4.5, the Workspace Administrator answers for the Corporation's venues and infrastructure remaining leaveable — including exportability of the corporate record and execution of the venue transition committed in Article XII.

Section 3.5: Workflow Infrastructure and Vote Outcomes

Workspace workflows link channel votes across the governance structure and are maintained by members and volunteers in #resource-infrastructure. Vote outcomes from all channels are recorded in #desk-vote-results and incorporated into corporate minutes by the Secretary.

Section 3.6: Board Meeting Procedure

The Board holds no recurring meeting requirement under these bylaws. Board action is conducted continuously through Desk Channel proceedings under §3.3, the Continuous Board Meeting Policy under §3.9, and written consent under KRS 273.375. Transparency is provided through the quarterly public reports under §3.8.

Synchronous meetings. When a matter requires focused real-time deliberation, a synchronous Board meeting may be called by the Workspace Administrator, the President, or any three (3) standing representatives, held in person or by telecommunications. Standing representatives shall receive at least two (2) days' written notice, including date, time, venue or method, and agenda; attendance constitutes waiver of notice except when attending to object to improper notice. A majority of standing representatives then in office constitutes a quorum, and the act of a majority present at a meeting with quorum is the act of the Board, unless a greater number is required by law or these bylaws. Standing representatives may participate by telecommunications if all participants can communicate simultaneously.

Section 3.7: Vacancies and Removal

Vacancies in any standing representative position are filled by election of the affected Desk Channel within a reasonable time. If a Desk Channel cannot fill a vacancy within sixty (60) days, the Board may appoint a temporary standing representative from the channel's participants until the channel elects a successor. A vacancy in a standing representative position is also a vacancy in the corresponding layer stewardship under §4.5 and shall be treated with the same urgency.

A standing representative may be removed by majority vote of their Desk Channel, or by two-thirds (2/3) vote of the voting membership at any properly noticed meeting with specific cause demonstrated and opportunity to be heard. A standing representative may resign by written notice to the Board and to their Desk Channel.

Section 3.8: Quarterly Public Reports

The Board shall publish a public report at the close of each calendar quarter, compiled and published by the Secretariat in coordination with the other channels. Each report shall include, at minimum: significant Board decisions and channel votes; the Corporation's financial status and material transactions; the status of active programs and committees; membership changes; compliance status with regulatory filings; the status of any platform economy under §5.7, including each platform's published trailing default rate; and the status of each named interim and committed transition under Article XII, stated plainly, including any stall. Each report is published on the Corporation's public website and incorporated into corporate records.

Section 3.9: Committees and Continuous Board Action

The Board may create committees and delegate authority as permitted by Kentucky law, except that committees may not authorize distributions, fill board vacancies, adopt or amend bylaws, elect or remove officers, or approve fundamental corporate changes. Committees operate as Committee Channels within the Workspace, open to all members of any class; binding votes follow §3.3; committees report through the Workspace Administrator and the quarterly public reports.

The Continuous Board Meeting Policy (P1-003), set forth at Appendix B, is the operative procedure for ongoing Board action under KRS 273.375 and the primary mode of Board deliberation; synchronous meetings under §3.6 are reserved for matters requiring focused real-time engagement. P1-003 is amended by board written consent and does not require amendment of these bylaws.

Section 3.10: Conflict of Interest, Asset Protection, and Emergency Powers

The Board shall adopt and enforce a conflict of interest policy; standing representatives with conflicts must disclose them and may not vote on related matters at Board or channel level. The Vice President's audit authority under §4.3 extends to review of conflict disclosures.

Critical organizational assets — intellectual property, major contracts, and investments exceeding \$10,000 — require authorization from at least three (3) standing representatives for any transfer, modification, or encumbrance.

During organizational emergencies threatening the Corporation's mission or operations, the Board may take immediate protective actions; any changes affecting fundamental governance, mission, or member rights require subsequent membership approval within ninety (90) days.

ARTICLE IV: OFFICERS

Section 4.1: Required Officers

The Corporation shall have five officers: President, Vice President, Secretary, Treasurer, and Workspace Administrator. Additional officers may be appointed as determined by the Board. One person may hold more than one office to the extent permitted by Kentucky law, except that no person may simultaneously hold two offices carrying layer stewardship under §4.5.

Section 4.2: Election and Terms

Officers are the standing representatives elected by their respective Desk Channels under §3.3. Each officer serves until removed, resigned, or replaced by their Desk Channel; the Desk Channels shall reaffirm or replace their standing representatives at least annually, in conjunction with the annual membership meeting.

Section 4.3: Officer Duties

President. Chief executive officer: implements board policies, manages daily operations, and may execute contracts as authorized. As steward of the covenant layer under §4.5, the President answers for the integrity of the Corporation's trust and assessment systems — their symmetry, their refusal of averaged scores, and the answerability of every claim — while never personally holding a verdict on any claim.

Vice President. Serves as President in the President's absence, incapacity, or inability to serve. Exercises audit authority over the Corporation's financial affairs, internal controls, compliance with bylaws and board policies, and other governance matters — including the right to review records, conduct inquiries, and report findings to the Board. The audit authority is investigative, never

dispositive: findings are reported to the Board and the affected channels, with whom disposition remains. Administers the appeals procedure of §2.7. As steward of the governance layer under §4.5, the Vice President answers for the minimal core, the standing contestation channels, and the progress of the committed transitions under Article XII.

Secretary. Maintains corporate records, provides notice of meetings, records minutes, authenticates corporate documents, coordinates document control and version management, and leads the Secretariat in producing the quarterly public reports. As steward of the record layer under §4.5, the Secretariat answers for the append-only discipline of the corporate record: corrections and reversals are recorded as new entries, never as erasures, and the register of §7.3 is maintained with plain-language change summaries.

Treasurer. Oversees financial affairs, maintains financial records, provides financial reports to the Board, and ensures compliance with financial policies. As steward of the Economy & Information layer under §4.5, the Treasurer answers for the conformance of any platform economy under §5.7 — escrow-first settlement, the published-review transition to credit, and the earned-never-bought, non-redeemable discipline of the architecture — and for the no-truth-authority discipline of the Corporation's knowledge commons.

Workspace Administrator. Presides over continuous channel deliberation and the annual membership meeting; coordinates between Desk and Committee Channels via the workflow infrastructure of §3.5; ensures proper governance and performs duties assigned by the Board. As steward of the substrate layer under §4.5, answers for the Corporation's venues and infrastructure remaining leaveable.

Section 4.4: Removal and Resignation

Officers may be removed in accordance with §3.7: by majority vote of their Desk Channel, or by two-thirds (2/3) vote of the voting membership at a properly noticed meeting with cause demonstrated. Officers may also be removed by majority vote of the Board for failure to perform office duties, subject to subsequent ratification by the Desk Channel. Officers may resign by written notice to the Board and to their Desk Channel.

Section 4.5: Layer-Aligned Stewardship

The five offices align one-to-one with the five layers of Janus Facing Architecture, so that every layer has exactly one named, recallable officer answerable for its conformance and legibility:

- The Workspace Administrator stewards the Substrate layer
- The Secretary stewards the Record layer
- The President stewards the Covenant layer
- The Vice President stewards the Governance layer
- The Treasurer stewards the Economy & Information layer

Stewardship is answerability, not authority. A steward answers to the Board and the membership for their layer's conformance and legibility; stewardship confers no adjudicative or dispositive power beyond the powers otherwise granted by these bylaws. The Secretary does not decide which record is official beyond the authentication duties of §4.3; the President holds no verdict on any claim; the Treasurer administers economy policy only through governed, recorded policy changes, never through per-member discretion.

One-to-one alignment is the point: a layer without a steward decays with no one answerable, and an office stewarding two layers concentrates what the alignment exists to distribute. Each stewardship inherits the recall provisions of §3.7.

ARTICLE V: FINANCIAL MANAGEMENT

Section 5.1: Fiscal Year

The Corporation's fiscal year is the calendar year unless changed by board resolution.

Section 5.2: Financial Controls

The Board shall establish financial policies including annual budget approval procedures, spending authorization limits, financial reporting requirements, audit or review procedures, and investment policies.

Section 5.3: Financial Support to Members

The Corporation may provide grants or financial support to members only through competitive grant programs open to all eligible members, emergency hardship assistance with Board approval, seed funding for new chapters or initiatives meeting strategic priorities, or project-specific funding tied to the Corporation's exempt purposes. All funding decisions must be documented with rationale showing advancement of the charitable, educational, and scientific mission.

Section 5.4: Compensation

All compensation must comply with IRS intermediate sanctions requirements and be approved by the Board following documented reasonableness analysis using appropriate comparability data.

Section 5.5: Prohibited Transactions

The Corporation shall not make loans to directors or officers, except as permitted by applicable law.

Section 5.6: Open Access

No dues, fees, or charges of any kind shall attach to access to the Corporation's open-source protocols and systems, which remain freely available to all, or to any class of membership.

Section 5.7: Platform Economies

Any exchange economy operated on Corporation platforms shall conform to Janus Facing Architecture. Where an obligation below carries a registry ID, these bylaws bind it as an instrument-level obligation.

- Money is created at the moment of exchange — one balance down, one up, always summing to zero (L1).
- Settlement begins as pre-funded escrow: collateralized, no negative balances, no trust extended (L10).
- A deployment may operate a hybrid stage in which escrow and mutual credit run across the same system and each prosumer decides which they accept.
- The switch from escrow to a hybrid system or to full mutual credit occurs only after the operator builds capacity, the prosumer network is notified, and a completed regulatory review is published to the governance layer (L10). Publication of the regulatory review to the governance layer is the application; no further Board approval attaches. The Secretariat records the published review in the register of §7.3.

- Credit units are earned for value provided to the network; they are never sold, never purchasable, and never redeemable for fiat currency (L2); denomination against fiat is a unit of account, never a backing.
- Issuance is gated by the covenant; how much any member may draw is a community-wide limit set by the platform operator — one number for everyone, never per-member, and never derived from reputation (L9).
- Each platform's unit remains sovereign and non-convertible to any other platform's unit (L3); value stays home, and only truth crosses (L4).
- The operator manages the economy it hosts: it annotates defaulted balances by kind — deceased, departed, or adjudicated — never erasing them (L6), and publishes its economy's trailing default rate.

The Treasurer reports the status of any economy under this Section, including each platform's published trailing default rate, in the quarterly public reports under §3.8.

Section 5.8: Subscriptions and Tooling

The Corporation may offer paid subscriptions that provision tooling, infrastructure, and services — including enterprise AI and media tooling — through Corporation shared workspaces. Subscription tiers and pricing are established by board policy resolution, reviewed annually against the actual cost and fair market value of what is provided. All subscription fees must represent genuine exchange of value.

A subscription is not membership. It confers no governance right, no franchise, and no standing beyond the tooling it provisions. Lapse of a subscription ends tooling access and nothing else; it is not a termination and requires no action under §2.8. The Corporation provisions access and does not reimburse for individually procured tooling.

ARTICLE VI: PROGRAMS AND OPERATIONS

Section 6.1: Programs and Working Groups

The Board may establish programs and working groups to advance the corporate mission through charter documents or policy resolutions defining scope, management, and procedures. Working groups are the primary mechanism for collaborative research and protocol development; their charters are established by board policy resolution. Members may operate as chartered programs, lead working groups, or participate in collaborative research, subject to charter agreements or working group procedures.

Section 6.2: Operational Policies

All operational procedures are governed by board-adopted policies addressing: conflict of interest; record keeping and transparency; privacy protection and data management; personnel management; grant-making (if applicable); intellectual property and open-source compliance; working group governance and technical standards; and the legibility and interpretive accessibility of governing documents and governance-relevant systems, consistent with the architecture's legibility requirements.

Section 6.3: Asynchronous Discussion Procedure

6.3(a) Definition and invocation. "Asynchronous Discussion" means the three-phase deliberative procedure of this Section. It is the default mode of substantive committee deliberation and may be invoked by any committee chair, the President, or by petition of any three (3) members of a committee. Each phase targets a duration of two (2) weeks; the committee chair documents any extension in the

proposal record.

6.3(b) Phase 1 — Individual Assessment. Committee members review the originating documentation and each produce an individual position document setting out their position on the question. All Phase 1 documents are filed in the proposal record before Phase 2 begins.

6.3(c) Phase 2 — Vector Synthesis. All Phase 1 documents are loaded into a large language model oriented with the original documentation in a public project, prompted to produce a vector position — a synthesized stance honoring the range of perspectives expressed. The canonical prompt is: "Generate a synthesized stance that honors the range of perspectives expressed in each document." Each participant then produces a second document expressing their position concerning the vector's compromises. If no material harm is identified, the committee may move to Phase 3 with or without consensus. If material harm is identified, it is documented in the proposal record and the vector adjusted by the President, the Workspace Administrator, or the committee chair with authority over the matter, who re-issues the synthesis prompt incorporating the documented harm. A single documented harm suffices to reopen the synthesis; harm is never averaged into it.

6.3(d) Phase 3 — Fine Tuning. With consensus established, the new language is drafted into the proposed final document. Participants review the final text and submit a public vote for or against, with written comments required alongside every vote. Voting and commentary remain open to preserve awareness of the issue. Where major votes against or troubling comments arise, the committee chair returns the matter to Phase 1.

6.3(e) Record. All documents produced under this Section are preserved in the proposal record and incorporated into corporate minutes by the Secretary.

ARTICLE VII: LEGAL COMPLIANCE AND GOVERNANCE

Section 7.1: Tax-Exempt Compliance

The Corporation shall operate exclusively for Section 501(c)(3) purposes; prohibit private inurement and private benefit; limit lobbying to permissible levels; completely prohibit political campaign intervention; ensure assets are permanently dedicated to exempt purposes; and ensure all protocols and systems remain open-source and freely available.

Section 7.2: Corporate Law Compliance

The Corporation shall comply with all requirements of KRS Chapter 273 and other applicable Kentucky law.

Section 7.3: Books, Records, and the Register

The Corporation shall maintain correct and complete books of account and minutes of proceedings. Members in good standing may inspect corporate records for proper purposes as provided by Kentucky law, subject to reasonable Board policies. The Vice President's audit authority under §4.3 includes access to corporate records as needed for audit purposes; such access is deemed a proper purpose without further showing.

The Corporation shall maintain a versioned register of its governing documents and board policies. The register is append-only: each change is recorded as a new version accompanied by a plain-language summary of what changed and why; superseded versions are retained and remain inspectable; corrections are new entries, never erasures. The Secretariat maintains the register under §4.3.

Section 7.4: Annual Reporting

The Corporation shall file all required annual reports with Kentucky and federal authorities and comply with public disclosure requirements.

ARTICLE VIII: INDEMNIFICATION

Section 8.1: Indemnification

The Corporation shall indemnify directors and officers to the fullest extent permitted by Kentucky law for actions taken in good faith in the best interests of the Corporation, subject to procedures established by board policy.

ARTICLE IX: AMENDMENT AND DISSOLUTION

Section 9.1: Amendment Process

General amendments. These bylaws may be amended by two-thirds (2/3) vote of the voting membership present at any properly noticed meeting where a quorum exists.

Fundamental commitments. Modifications to §1.4 require supermajority approval (two-thirds of all voting members) plus unanimous board approval.

Notice. Proposed amendments must be included in the meeting notice or distributed to members at least ten (10) days before the meeting.

Section 9.2: Dissolution

The Corporation may be dissolved by two-thirds (2/3) vote of the voting membership at a properly noticed meeting. Upon dissolution, assets shall be distributed exclusively to one or more organizations exempt under Section 501(c)(3) or to governmental entities for public purposes, as determined by the Board in accordance with applicable law.

ARTICLE X: MISCELLANEOUS PROVISIONS

Section 10.1: Registered Office and Agent

The Corporation shall continuously maintain a registered office and registered agent in Kentucky as required by law.

Section 10.2: Corporate Seal

The Corporation may adopt a corporate seal, the use or absence of which shall not affect the validity of corporate documents.

Section 10.3: Execution of Documents

Documents may be executed by such officers as authorized by the Board, in accordance with board policies and applicable law.

Section 10.4: Electronic Communications

Notice and other communications may be given electronically in accordance with applicable law and board policies.

ARTICLE XI: CONTRIBUTOR COVENANT

Section 11.1: Scope of Contribution

A contribution, once submitted, becomes the property of the digital commons and may not be reclaimed by the contributor. Contributions include copyrighted works published under the GNU Affero General Public License version 3 (AGPL-3), and unpublished works in code, text, or other media, including ideas presented in conversation when offered in the contributor's capacity. Conversation is not, by virtue of its occurrence, deemed a contribution; only ideas and works offered in the contributor's capacity fall within the scope of this Article.

Section 11.2: Exclusion of Personally Identifying Information

Personally identifying information (PII) is not a contribution and shall not be submitted as one. This includes, but is not limited to, names, contact information, financial information, government identifiers, biometric data, and any other information that identifies or could reasonably be used to identify a natural person — whether the contributor, another member, or any third party.

Contributors are responsible for excluding PII from material they submit. The Institute may decline to accept, or may redact, any submitted material containing PII. The fundamental commitment to privacy-first principles and user data sovereignty under §1.4 governs the Institute's handling of any PII that may inadvertently be received.

Section 11.3: The Public to Whom Contribution Is Owed

Contributors understand that their work is undertaken on behalf of the special — that is, species-wide — public. Contributors shall act with respect for, but not necessarily adherence to, political and cultural restrictions encountered in the course of that work.

Section 11.4: Philosophical Foundations

Contributors shall strive to honor the philosophical foundations of the Institute: Maximum Observational Diversity (MOD), Minimum Sustainable Projection (MSP), and the Scientific Method as Necessary Ritual. Brief definitions follow; the full statements are set forth at Appendix A.

Maximum Observational Diversity (MOD). A methodological principle for distinguishing emergent patterns from projected ones. When observations are gathered from maximally diverse and independent sources — temporally, culturally, disciplinarily, and across scales — maintaining a false pattern becomes computationally expensive, leaving convergent patterns that emerge from the elements themselves.

Minimum Sustainable Projection (MSP). An architectural principle for building systems where truth-aligned behavior becomes the path of least resistance. Systems are constructed using only the minimal assumptions necessary, with those projections designed to align with emergent patterns. The thermodynamic gradient thus favors honest participation over deception.

The Scientific Method as Necessary Ritual. The formalized, communal practice that sits between MOD and MSP, metabolizing observations into validated knowledge through sacred doubt, distributed validation, and falsifiability.

Section 11.5: Scope and Effect

This Article applies to all contributions accepted by the Institute on or after the effective date of this Article. Acceptance of Corporation membership, volunteer engagement, or any tooling access

provisioned through Corporation shared workspaces constitutes acknowledgment of this Article.

ARTICLE XII: ARCHITECTURAL CONFORMANCE AND COMMITTED TRANSITIONS

Section 12.1: The Architecture Document

The Corporation's software is held to Janus Facing Architecture, the Corporation's unified architecture document, which is maintained in the open, names roles and mechanisms rather than products, and is amendable in the open. The Corporation's own governance is one instance of that architecture's governance layer, and these bylaws are the instrument in which the instance's political choices bind. The architecture document is a standard and a legibility instrument; it confers no authority. Disposition on every matter remains with the membership and the Board as provided in these bylaws, and nothing in the architecture document overrides any provision of these bylaws or any vote of the membership.

The architecture document ships with an executable conformance suite that maintains a registry of invariants cited by stable IDs. Where these bylaws carry an architecture obligation, they cite the registry ID that binds it (L1, L2, L3, L4, L6, L9, L10 at §5.7; P-cost-of-leaving at §12.4; the append-only register of §7.3 carries the discipline of L6). The suite designates certain invariants as enforceable only by a governance instrument; this instrument is where they bind. The Secretariat shall run the conformance suite against the architecture document as part of register maintenance under §7.3.

Section 12.2: Named Interims

Two features of the Corporation's present governance are conformant to the architecture only as named interims on a committed path. They are named here so that neither is mistaken for a settled end-state.

(a) Bootstrap operator recognition. Until the record layer operates, operator members are recognized by Board action under §2.5 rather than read from the public chain. Recognition by any body's action is not conformant as an end-state — the architecture's membership standard is operation, recorded and readable by anyone. The bootstrap is retained solely until the record layer operates, and every disposition resting on unwitnessed evidence must name its self-attested character.

(b) The proprietary Workspace. The Corporation's governance venue under §3.1 is a proprietary, revocable, hosted service — a hosting chokepoint at the governance core. It is retained solely until sovereign coordination substrate satisfying the architecture's substrate invariants is operational under §12.3(a).

Each interim is conformant only while its exit remains committed and progressing. The quarterly public reports under §3.8 shall state the status of each interim and its transition plainly; a stalled transition shall be reported as a standing non-conformance, not reframed or omitted.

Section 12.3: Committed Transitions

(a) Venue exit. When sovereign coordination substrate satisfying the architecture's substrate invariants is operational, the Board shall designate it as the Workspace by board action with notice to the membership. The designation, and the migration of governance records to the new venue, are board-policy actions and do not require amendment of these bylaws. Migration shall preserve the corporate record intact and append-only.

(b) Recognition maturation. When the record layer of the architecture is operating — the public chain live on substrate, platforms maintaining their two independent witnesses, and dispute filings and

resolutions committed to the chain — operator recognition shifts from Board action to recognition against the public chain per §2.5, without further amendment of these bylaws. From that point, no body's permission stands between operating a federated instance and holding the franchise.

(c) Genesis stewardship. As the architecture's layers come online, the standing representatives then in office constitute the Corporation's genesis operator set — the bootstrap trust root that precedes recognition against the public chain — and are the Corporation's first operator members under §2.5, so that the governing body becomes the operator federation rather than being replaced by it.

Section 12.4: Institutional Discipline

Per the architecture's cost-of-leaving principle (registry ID P-cost-of-leaving), each of the Corporation's institutions is assigned the discipline matching the cost of leaving it:

- **Where leaving is cheap, competition disciplines.** Platforms, frontends, subscriptions, and operators: prosumers and members leave freely, and public adjudication reputations, published default rates, and operator-set limits are the information that competition runs on.
- **Where leaving is dear, members vote.** The Workspace, the membership rules, the offices, and these bylaws: changed only by the votes these bylaws provide.
- **Where leaving is impossible, decisions stay open to challenge.** The corporate record and the register are append-only and cannot be left; accordingly, no decision recorded in them is permanently closed — the Maximum Observational Diversity challenge of §3.3 may reopen any decided matter, and corrections are new entries, never erasures.

Section 12.5: Non-Derogation

Nothing in this Article modifies the Fundamental Commitments of §1.4, expands entrenchment beyond §1.4, or subordinates any vote of the membership to the architecture document. Conflicts between the architecture document and these bylaws shall be surfaced to the membership and resolved in the open, by amendment of one instrument or the other.

APPENDIX A: PHILOSOPHICAL FOUNDATIONS

Incorporated by reference into Article XI (Contributor Covenant). The statements below may also be cited in connection with any deliberation conducted under Article VI, Section 6.3.

A.1 Maximum Observational Diversity

Maximum Observational Diversity is the methodological principle that genuine emergent patterns can be distinguished from projected ones by gathering observations from maximally diverse, independent sources. When observers share cultural frameworks, communication channels, or conceptual languages, their observations can reinforce one another's projections; everyone seeing the same thing does not make it true if everyone is looking through the same lens.

True diversity of observation requires temporal independence (observations separated across centuries or millennia, before modern communication could synchronize perspectives), cultural independence (observations from cultures without historical contact), disciplinary independence (different fields with different methodologies), and scale independence (patterns appearing at atomic, molecular, cellular, organismal, and social scales).

The principle operates on a thermodynamic insight: maintaining a false or projected pattern across truly diverse observations requires exponentially more energy than maintaining a true emergent pattern. MOD makes lying thermodynamically unfavorable — not through moral pressure or social enforcement,

but through the physics of information maintenance across independent observation.

Full statement: <https://www.ntari.org/post/maximum-observational-diversity>

A.2 Minimum Sustainable Projection

Minimum Sustainable Projection is the architectural principle for building systems where truth-aligned behavior becomes the path of least resistance. Every system requires some projection — assumptions, abstractions, conventions — because we cannot build directly on raw reality. The principle is not to eliminate projection but to use only the minimum necessary, designing those projections to align with emergent patterns rather than fighting against them.

A projection is minimal when it cannot be removed without system collapse, when it aligns with observable emergent patterns, when it enables rather than constrains, and when it can evolve with new observations. A projection is sustainable when truth-aligned behavior costs less energy than deception, when error correction is metabolized cooperatively, when distributed observation can validate claims, and when the system reinforces its own health through feedback.

Applied to NTARI's technical and governance choices, MSP favors distributed validation over centralized authority, AGPL-3 transparency over proprietary opacity, user data sovereignty, and cooperative ownership. The principle is one of humility — our projections are always partial, always potentially mistaken, and the path to truth runs through doubt, distribution, and thermodynamic alignment with what already emerges from reality.

Full statement: <https://www.ntari.org/post/minimum-sustainable-projection>

A.3 The Scientific Method as Necessary Ritual

The scientific method sits at the precise intersection of MOD and MSP. It is neither pure discovery nor pure implementation but the necessary ritual that metabolizes observations into validated knowledge through disciplined doubt, distributed observation, and thermodynamic alignment.

We typically call it the scientific "method" — a procedure, a technique. This framing misses something essential. It is ritual: a formalized, repeated, communal practice that maintains a relationship with something beyond individual understanding. Its ritual aspects are formalized practice (hypothesis, experiment, analysis, publication — performed the same regardless of individual belief), communal participation (peer review, replication, shared standards), repeated performance, sacred doubt (skepticism as reverence for truth beyond individual certainty), initiation and apprenticeship, and collective memory through literature and citation.

The ritual's core principles are doubt as sacred practice, reproducibility as distributed consensus, falsifiability as humility before truth, and community as a necessary condition — science cannot be performed in isolation. Where the ritual is corrupted by publication bias, p-hacking, funding capture, or appeals to authority, the remedy is not to abandon it but to reinvigorate its sacred core.

Full statement: <https://www.ntari.org/post/the-scientific-method-as-necessary-ritual>

APPENDIX B: P1-003 CONTINUOUS BOARD MEETING POLICY

Submitted March 5, 2026. Adopted by board written consent under KRS 273.375. Resident in the Continuous Meeting Guide pinned to the #board-of-directors channel. Reproduced here as adopted; P1-003 is amended by board written consent under §3.9 and will require subsequent board-level updates to reflect the channel structure established in Article III.

Author's Note

The internet gives us the opportunity to reach each other continuously, superseding the state requirement for in-person meetings. This improvement is supported by the bylaws. The following language becomes P1-003 Continuous Board Meeting Policy, residing in the Continuous Meeting Guide in the #board-of-directors channel.

Designation

Channel: #board-of-directors

Function: Continuous Board Meeting Channel

Effective: Upon board adoption as a written consent action per KRS 273.375

Legal and Governance Basis

KRS 273.375 — Director Action Without Meeting — is the operative authority. Kentucky law permits board action outside a formal meeting when all directors provide written consent describing the action taken, filed with corporate records. A persistent, director-exclusive channel satisfies this requirement: each vote or consent posted constitutes a signed written consent, and the channel's message history serves as the corporate record. This is cleaner than KRS 273.223 (place and notice of meetings), which governs synchronous sessions.

NTARI Bylaws Section 3.5 establishes the quarterly minimum meeting cadence and quorum requirements (majority of directors in office). The continuous channel does not replace the quarterly requirement — it fulfills and exceeds it by enabling between-meeting governance actions that are fully documented.

P2-001 Classification

This channel is a Priority 1 governance function: it directly supports board authority, member rights, and organizational legal status. Under P2-001's document hierarchy, all actions recorded in this channel that constitute board decisions shall be archived and preserved as corporate records per the backup requirements in P2-001 Article VI.

Operating Parameters

Access: Directors only.

Quorum: Per Bylaws Section 3.5, a majority of directors in office (5 of 8 at full composition). For KRS 273.375 written consent actions, all directors must sign — this channel supports both modes.

Notice: Per KRS 273.223, at least two days' written notice is required for director meetings. A pinned post at the top of the channel initiating a vote thread constitutes this notice. The Secretary shall @ the full board on any new agenda item post.

Record of Action: Each decided item shall be pinned and referenced by the Secretary in a message formatted as: [ACTION ADOPTED — {date} — {description} — Consent: {list of directors}] before filing in minutes.

Quarterly Sessions: The channel satisfies the quarterly meeting requirement when quorum is achieved and business is conducted during that quarter's calendar window, per Bylaws Section 3.5.

Proposal Process: Proposals shall be submitted with edit access granted to the channel. The document body shall lead with the date submitted in dynamic Month/day/year format. Titles shall include the word

"proposal" so workflow infrastructure recognizes the document as a new proposal.

Channel Description

Continuous board meeting channel — NTARI Board of Directors. Actions taken here constitute written director consent per KRS 273.375 and are incorporated into corporate minutes by the Secretary. Public forum with director-only voting (JBG03052026).

Adoption

This designation shall be adopted by board written consent posted in the #board-of-directors channel upon its creation, establishing the self-referential record.

DOCUMENT CONTROL

Document ID: P1-001 (Bylaws — Priority 1)

Version: 8.0 — DRAFT

Effective Date: [pending membership adoption — to be filled in upon vote]

Review Schedule: Annual review required per KRS Chapter 273

Secretary Coordination: Required for version control and publication per P2-001

Prior versions: P1-001 v7.1 — DRAFT (August 27, 2026), v7.0 — DRAFT (July 12, 2026), and v6.0 (May 13, 2026) are retained in the register of governing documents per §7.3; their amendment notes travel with them.

Amendment Notes — Version 8.0 (DRAFT)

Version 8.0 is a full rewrite. Membership is rebuilt on the Janus Facing Architecture standard, and every article is restated at the instrument's proper altitude. The changes:

- **Membership rebuilt (Article II).** The architecture's governance layer sets the standard — membership carrying the franchise is obtained by operating a federated instance of JFA software — and Article II now says exactly that. Two classes remain: Community (free, voice, MOD standing) and Operator (free, the franchise, qualified by federated operation under §2.5). The four subscribing membership classes are abolished as membership: subscriptions become a tooling program under §5.8, conferring no governance right. The subscription-qualified franchise interim of v7.x is eliminated entirely — purchase never qualifies governance. The one remaining membership interim is bootstrap operator recognition by Board action until the record layer operates (§12.2(a)), after which recognition is read from the public chain with no body's permission in between (§12.3(b)).
- **Prosumer standing (§2.9).** The architecture's guarantees run to prosumers of federated platforms whether or not they hold Corporation membership; membership is never a precondition for architecture rights.
- **Governance principles (§1.6) and Institutional Discipline (§12.4).** Shared Responsibility and the cost-of-leaving rule are stated as reading principles, and §12.4 assigns each institution its discipline — competition, vote, or open challenge — binding the architecture's instrument-designated invariant P-cost-of-leaving.
- **Platform economies (§5.7)** carry the architecture's current line 10 — the published-review transition (publication is the application; no Board approval attaches), the hybrid stage, the operator-set community-wide limit, default annotation by kind, and trailing-default-rate publication

— citing registry IDs L1, L2, L3, L4, L6, L9, L10.

- **Appeals and readmission (§2.7).** The office of the Vice President is the governance venue: case submission without PII, a one-week Federation Channel rating period under the LBTAS procedure, one rating per member of the Vice President's circle, no voting obligation, no readmission on a mode of -1, decision by the Vice President as elected delegate when no ratings are cast, and resubmission after a one-week cooldown. Disqualified operators re-enter by the same path.
- **Naming conformance throughout:** Janus Facing Architecture (no hyphen); Economy & Information (E&I) layer and #federation-economy-information; the public chain and six-holder record; the "unfederated" label; "prosumers" rather than "users."
- **Consolidation.** Article III consolidates board procedure (meetings, committees, continuous action, conflicts, assets, emergencies) with no substantive change to thresholds or notice periods; the Workspace-tooling vote deduplication and the MOD challenge carry forward; dues-tier tables move from the bylaws to board policy under §5.8; the Working Group Charter Template (former Appendix A) is deleted, charters now set by board policy; appendices renumbered (Philosophical Foundations = Appendix A; P1-003 = Appendix B).
- **Register commitment (§12.1).** The Secretariat runs the architecture's conformance suite as part of register maintenance; the suite's instrument-designated invariants bind in this instrument rather than remaining self-attested.